

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

Section 3.4 — The Education-Area Standard: Operationalizing Article 24 Within Alberta Provincial Jurisdiction

Section 3.3 developed the substantive content of seven of the eight substantive-standards areas of the *Alberta Accessibility and Inclusion Act*. Section 3.4 develops the substantive content of the eighth area, education, in the depth the substantive content requires. The detailed development is justified by three substantive considerations. First, the substantive content is more extensive than the seven non-education areas because the education area must address the engineered three-part repudiation documented in Part One Section 1.3a (the funding starvation, the segregated-classroom expansion, and the political-rhetorical cover) at the operational level. Second, the substantive content must operationalize Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities* (Part Two Section 2.7) and General Comment No. 4 (Part Two Section 2.7a) within Alberta provincial jurisdiction directly. Third, the substantive content must specify departures from comparator legislation that the documented Alberta record requires — in particular the funding-floor and EA-staffing-ratio provisions that no comparator legislation includes but that the Alberta engineered-repudiation finding makes operationally necessary.

The section develops eight substantive components of the education-area standard. The first establishes inclusive education as the structural baseline for the Alberta K-12 system, operationalizing General Comment No. 4's substantive distinction among exclusion, segregation, integration, and inclusion. The second establishes the per-student-funding-floor provisions and the operational mechanism through which the floor is maintained. The third establishes the educational-assistant staffing-ratio provisions and the operational mechanism through which the ratios are delivered. The fourth establishes the segregated-setting transition pathway, including the prohibition on expansion of new segregated facilities and the structured transition of existing segregated programming to inclusive programming. The fifth establishes the structural prohibition on involuntary confinement in seclusion rooms and the structured framework for the elimination of physical-restraint practices. The sixth establishes the positive-behaviour-support and reasonable-accommodation framework that operates as the operational alternative to seclusion, restraint, and segregation. The seventh establishes the Article 4(3) consultation requirements that operate at the policy-development, standards-development, and implementation levels. The eighth establishes the public-record reporting and statutory-review cycle through which the substantive content is monitored, evaluated, and improved over time. A final substantive component addresses the coordination provisions with the existing Alberta education-sector legislative and regulatory architecture.

The substantive content of Section 3.4 is grounded in the documented Alberta record across Section 1.3a, in the international human rights framework documented in Sections 2.7 and 2.7a, in the comparator-jurisdiction record documented in Sections 2.1 through 2.6 (with particular attention to the Nova Scotia precedent of education as a stand-alone accessibility area), and in the disability-community

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advocacy position consistently maintained by Inclusion Alberta and other Alberta disability-rights organizations across the period under examination.

The Inclusive Education Baseline

The education-area standard must establish inclusive education as the structural baseline for the Alberta K-12 system. The substantive standard is dispositive: inclusion is the only educational framework consistent with Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities*, and the Alberta legislation must accordingly establish inclusion as the default substantive framework within which all educational placement and programming decisions operate.

The substantive content of the inclusive-education-baseline provision must codify the General Comment No. 4 four-framework taxonomy (exclusion, segregation, integration, inclusion) within the legislation, must identify inclusion as the substantive framework the legislation requires, must establish a statutory presumption in favour of inclusive placement for all students with disabilities, must preserve the existing parental right to choose inclusive education for children with developmental disabilities (operationalizing the 2003 *Standards for Special Education* parental-choice provision in updated and strengthened form), must establish the substantive right of appeal of placement decisions that depart from inclusive placement, and must establish the substantive content of inclusive education at the operational level (general-education classroom placement, age-and-grade-appropriate programming, structured accommodations and modifications integrated into the general-education curriculum, structured peer relationships with non-disabled students, structured participation in the full range of school activities, and structured transition planning across grade levels and educational stages).

The statutory presumption in favour of inclusive placement is operationally significant. The presumption establishes that, in the absence of substantive evidence that inclusive placement is not in the substantive interest of the individual student, the inclusive placement is the placement the system delivers. The presumption shifts the operational burden from the family (which currently must advocate continuously for inclusive placement against system pressure to segregated programming) to the system (which must demonstrate, on substantive evidence, that any departure from inclusive placement serves the substantive interest of the individual student). The presumption is supplemented by structured accommodation and modification provisions that ensure the inclusive placement is operationally feasible for the individual student.

The right of appeal of placement decisions that depart from inclusive placement must operate through a structured appeal process with defined timelines, with substantive review of the placement decision against the inclusive-baseline standard, and with substantive remedies available if the placement decision is found to depart from the inclusive baseline without sufficient substantive justification. The appeal process must be accessible to families regardless of their familiarity with administrative procedures, must include support for families navigating the process, and must operate at no cost to families.

The substantive content of inclusive education at the operational level must be specified with sufficient detail that *inclusion* is not reduced to formal physical placement in a general-education classroom without the substantive supports that make inclusion meaningful (the *integration without inclusion* problem

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General Comment No. 4 explicitly identifies). The substantive content must include the structured provision of accommodations and modifications, the structured provision of educational-assistant support at the ratios specified in subsequent provisions, the structured provision of specialist support (speech-language pathologists, occupational therapists, psychologists, behaviour analysts, where indicated) within the general-education classroom or in close coordination with general-education programming, the structured provision of curriculum modification where indicated by the individual student's profile, the structured provision of peer-support arrangements, and the structured provision of teacher training in inclusive pedagogy and disability-affirming practice.

The Per-Student Funding-Floor Provisions

The education-area standard must establish per-student-funding-floor provisions that prevent the funding-starvation pattern documented in Section 1.3a from being the structural mechanism through which inclusion is denied. The substantive provision is a substantial departure from comparator accessibility legislation. None of the federal *Accessible Canada Act* or the five comparator provincial accessibility statutes includes per-student-funding-floor provisions. The departure is justified by the documented Alberta record. The Alberta funding shortfall is not an incidental policy choice; it is the structural mechanism through which the engineered repudiation is being implemented. Comparator legislation that addresses inclusive education without addressing the funding mechanism is, on the documented Alberta evidence, insufficient to deliver Article 24 compliance.

The substantive content of the funding-floor provision must establish a defined per-student-funding floor expressed as a percentage of the Canadian provincial-and-territorial average per-student funding (calculated from Statistics Canada operational-expenditure data on a defined methodology, with reference to the data tables documented in Section 1.3a). The provision should specify that the per-student-funding floor cannot fall below the Canadian average over a defined adjustment period. The adjustment period should be calibrated to allow Alberta to close the existing 16-percent-and-widening gap to the Canadian average through a structured catch-up trajectory rather than a single-budget-year correction. A five-year adjustment period is the proposed structural framework: in the first fiscal year following the legislation's enactment, the per-student-funding floor must reach 90 percent of the Canadian average; in the second fiscal year, 92 percent; in the third fiscal year, 95 percent; in the fourth fiscal year, 98 percent; in the fifth fiscal year and subsequently, 100 percent of the Canadian average.

The funding-floor provision must include inflation-adjustment provisions ensuring that the floor maintains real-dollar value over time. The adjustment must be tied to a defined inflation index (the Consumer Price Index for Alberta, or an education-services-specific index where one becomes available) and must operate automatically rather than through discretionary annual budget decisions.

The funding-floor provision must include independent-verification provisions. The annual calculation of the Canadian provincial-and-territorial average and the annual measurement of Alberta's per-student funding against the floor must be conducted by an independent body (Statistics Canada operational-expenditure data is the primary verification source; the Office of the Auditor General of Alberta is the proposed verification body). The verification must be public, must be tabled in the Legislative Assembly, and must be subject to independent statutory review on the cycle established for the legislation's overall review.

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The funding-floor provision must include enforcement provisions. The substantive consequence of the provincial-government failing to meet the funding floor in any fiscal year must be defined in the legislation. Proposed structural consequences include: a mandatory remediation budget submission within a defined period, with the remediation budget restoring the funding to the floor level; a mandatory public reporting requirement on the failure and on the remediation plan; a structural disability-community-consultation requirement on the remediation plan prior to its implementation; and a substantive review of the funding-floor failure as part of the next periodic statutory review of the legislation.

The funding-floor provision must include transparency provisions ensuring that the calculation of the funding floor and the assessment of compliance are publicly accessible and substantively meaningful. The transparency provisions must require the publication of the underlying data, the methodology of the calculation, the comparison to the Canadian average, and the trajectory of the funding-floor calculation over time. The transparency must enable independent verification by the disability community, by the teachers' organization, by the Alberta School Boards Association, by independent academic researchers, and by other parties with interest in the substantive accountability of the funding-floor compliance.

The funding-floor provision is the structural mechanism through which the substantive content of the inclusive-education baseline is made operationally feasible. Without adequate funding, inclusive education cannot be delivered at the substantive level General Comment No. 4 requires. The funding-floor provision is accordingly not a separate or supplementary element of the education-area standard; it is a foundational element without which the other substantive provisions cannot operate as intended.

The Educational-Assistant Staffing-Ratio Provisions

The education-area standard must establish minimum educational-assistant (EA) staffing ratios in Alberta classrooms sufficient to deliver inclusive education without forcing displacement to segregated settings. The provision is a structural complement to the funding-floor provision: the funding-floor establishes the resources, and the staffing-ratio provision establishes the operational deployment of those resources at the classroom level. Both provisions are substantial departures from comparator accessibility legislation. Both are justified by the documented Alberta record.

The substantive content of the staffing-ratio provision must specify the minimum EA support hours per student receiving inclusive-education programming. The substantive specification must be calibrated to the substantive support requirements of the student population. The proposed structural framework distinguishes among three substantive support tiers, calibrated to the operational support requirements documented in the existing Alberta special-education and inclusive-education literature. **Tier 1:** students whose support requirements are episodic, low-intensity, or peer-support-deliverable, requiring approximately 0.1 to 0.3 EA full-time-equivalent (FTE) hours per student (one EA FTE per group of three to ten students). **Tier 2:** students whose support requirements are sustained but moderate-intensity, requiring approximately 0.3 to 0.5 EA FTE hours per student (one EA FTE per group of two to three students). **Tier 3:** students whose support requirements are sustained and high-intensity, requiring approximately 0.5 to 1.0 EA FTE hours per student (one EA FTE per student in the highest-intensity context).

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The substantive specification must include structured-assessment provisions for placement of students within the tier framework. The placement must be conducted by a qualified-professional assessment, must include family and student input, must be subject to periodic reassessment, and must be subject to appeal where the family or student dispute the placement. The placement must operate to ensure that students receive the substantive level of support their substantive needs require, not to ration support based on aggregate budget considerations.

The substantive specification must include living-wage provisions for the EA workforce. The provision is operationally significant. The Tyee's documented reporting on Alberta EA compensation (Section 1.3a) establishes that EAs working seven-hour shifts at the top of the existing pay range receive after-tax annual income under \$30,000. Recruitment and retention are structurally constrained by the inadequate compensation. Without addressing the compensation, the staffing-ratio provision cannot be delivered: the structural EA labour-supply constraint will continue to operate even where school divisions have funding to hire. The proposed living-wage provision establishes a minimum EA compensation calibrated to the Alberta living-wage benchmark (calculated for major Alberta urban centres by the Living Wage Canada network and analogous bodies), with provisions for cost-of-living adjustment in northern, rural, and remote Alberta communities where the living-wage benchmark differs from the urban-centre benchmark.

The substantive specification must include training provisions for the EA workforce. The training must be funded through the provincial-government education budget rather than through individual EA expense. The training must include disability-affirming practice training, positive-behaviour-support training, trauma-informed practice training, AAC accommodation training, and accommodation-of-multiple-disability-profiles training. The training must be delivered by qualified professionals with substantive content expertise, must be delivered on a structured ongoing cycle rather than as a one-time orientation, and must be integrated with the broader teacher-and-school-staff professional-development framework.

The substantive specification must include federal-coordination provisions for Indigenous students. The Jordan's Principle eligibility collapse documented in Section 1.3a has produced the loss of hundreds of Alberta EA positions supporting First Nations students with disabilities. The substantive content must establish provincial-government commitment to maintain the EA staffing-ratio standards for Indigenous students regardless of the trajectory of federal Jordan's Principle funding, with structural cost-recovery and federal-coordination provisions developed in Section 3.8.

The staffing-ratio provision must include enforcement provisions analogous to the funding-floor enforcement provisions. The substantive consequence of provincial-government failure to meet the staffing-ratio standards in any school division must be defined, must include mandatory-remediation requirements, and must include public-reporting requirements on the failure and on the remediation plan.

The Segregated-Setting Transition Pathway

The education-area standard must establish a structured transition pathway from the existing segregated-setting expansion (documented in Section 1.3a) to the inclusive-education baseline established in the first substantive component of Section 3.4. The transition pathway is the operational

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mechanism through which the engineered-segregation pattern is reversed without producing immediate disruption for students currently enrolled in segregated programming.

The substantive content of the transition pathway must establish, as a foundational provision, the prohibition on the operational expansion of new segregated facilities and programs. The prohibition operates from the date of the legislation's enactment forward. The prohibition applies to the construction of new dedicated segregated schools (operationalized to address the Edmonton Public Schools Autism Centre of Excellence proposal documented in Section 1.3a), to the expansion of existing dedicated segregated schools beyond their current operational capacity (operationalized to address the planned second Calgary Catholic specialized facility proposed for Fall 2026 documented in Section 1.3a), to the establishment of new segregated classroom programs within otherwise-integrated schools, and to the expansion of existing segregated classroom programs (operationalized to address the EPSB *interactions program* expansion pattern documented in Section 1.3a).

The prohibition on expansion is substantive rather than performative. The legislation must define *segregated facility* and *segregated program* with sufficient operational precision to prevent the prohibition from being defeated through definitional reframing of expanded segregated programming as some other form of programming. The proposed definitional approach is to incorporate the General Comment No. 4 substantive definition of segregation directly into the Alberta statutory framework: *segregation occurs when the education of students with disabilities is provided in separate environments designed or used to respond to a particular impairment, in isolation from students without disabilities*. Programming meeting the General Comment definition is, for purposes of the Alberta legislation, segregated programming subject to the prohibition on expansion.

The substantive content of the transition pathway must also establish the structured transition of existing segregated programming to inclusive programming. The transition is operationally substantial. The existing Alberta segregated-programming infrastructure includes dedicated schools (the Edmonton Public Schools proposed Autism Centre of Excellence, the Calgary Catholic St. Anthony school, analogous facilities), dedicated classroom programs (the Edmonton Public Schools *interactions program*, analogous programs in other school divisions), and partial-segregation arrangements (resource rooms, pullout programming, separate-stream programming within otherwise-integrated schools). The transition must address all three categories.

The substantive transition framework operates over a defined transition period. The proposed framework is a ten-year transition period during which the existing segregated programming is converted to inclusive programming with appropriate adaptations and supports. The framework includes: a Year 1 substantive-needs assessment of all students currently enrolled in segregated programming, conducted with family and student input and with structured engagement of the disability community; a Year 1-3 transition-support-infrastructure development period during which the substantive supports required to enable inclusive placement of currently-segregated students are developed and operationalized (including increased EA staffing per the staffing-ratio provisions, expanded specialist-support provision, expanded teacher training, and expanded curriculum-modification capacity); a Year 3-7 structured-transition period during which students currently enrolled in segregated programming are transitioned to inclusive placements at a defined annual rate, with transition support and structured monitoring of transition outcomes; and a Year 7-10 final-transition and stabilization period during which all remaining segregated

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programming is converted to inclusive programming.

The transition pathway must include parental-choice provisions during the transition period. Families whose children are currently enrolled in segregated programming and who wish their children to remain in the existing programming during the transition period must have that choice respected, recognizing that families who have made the difficult decision to enroll their children in segregated programming under the existing pressure-against-inclusion conditions may not be in a position to immediately transition to inclusive placement even when the substantive supports are available. The transition pathway operates to provide structured options rather than mandatory immediate displacement.

The transition pathway must include independent monitoring provisions. The annual monitoring of transition progress must be conducted by an independent body (the Director of Compliance and Enforcement established in Section 3.5, supported by the Disability Community Advisory Council established in Section 3.6), must be public, must be tabled in the Legislative Assembly, and must include disability-community input on the substantive adequacy of the transition trajectory.

The Seclusion-Room and Restraint Prohibition

The education-area standard must establish a structural prohibition on the involuntary confinement of students in seclusion rooms. The provision reverses Ministerial Order #042/2019, *Seclusion and Physical Restraint in Alberta Schools Standards*, documented in Section 1.3a, and reinstates the substantive principle the 2018 New Democratic provincial government ban operationalized: the involuntary confinement of children — particularly children with developmental and intellectual disabilities and children on the autism spectrum — in locked rooms is structurally inconsistent with substantive equality, with the dignity-and-integrity provisions of the international disability-rights framework, and with the substantive accommodation Alberta children with disabilities are entitled to under the legislation.

The substantive content of the seclusion-room prohibition must establish, as a foundational provision, the prohibition on the construction or operational use of any locked seclusion room in any Alberta school. The prohibition applies to all school divisions: public, separate, francophone, charter, and private. The prohibition applies to all educational settings: K-12 schools, alternative education programs, off-site programs, and analogous educational settings operating within provincial jurisdiction. The prohibition is structural rather than discretionary; the substantive standard is that involuntary confinement of students in locked rooms is not an educational practice consistent with the legislation, regardless of the operational rationale offered for the practice.

The substantive content must include a structured transition timeline for the closure of existing seclusion rooms. The proposed framework is a two-year transition period during which all existing seclusion rooms are decommissioned and converted to alternative use (sensory rooms with appropriate substantive design, quiet spaces with non-locking doors, instructional spaces, or other operationally appropriate uses). The Edmonton Public Schools-documented decommissioning trajectory (167 to 105 rooms between 2024 and May 2025) demonstrates the operational feasibility of structured decommissioning at scale; the proposed two-year provincial-wide framework is consistent with the operational pace EPSB has demonstrated. During the transition period, mandatory monthly reporting on decommissioning progress

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must be provided to the Director of Compliance and Enforcement and to the Disability Community Advisory Council.

The substantive content must address physical-restraint practices distinct from seclusion-room practices. The substantive standard is that physical restraint is permitted only in immediate-safety circumstances where the immediate safety of the student or of others requires intervention, must be applied by personnel trained in safe-restraint techniques, must be limited to the minimum duration necessary to address the immediate safety concern, must be documented in detail with a structured incident-report requirement, must trigger a mandatory follow-up review including family notification and disability-community consultation where the student's substantive needs are not being adequately addressed by the existing accommodations and supports, and must not be used as a behaviour-management tool except in the immediate-safety circumstances narrowly defined.

The substantive content must include training provisions for school personnel on the alternatives to seclusion and restraint. The training must be funded through the provincial-government education budget, must be delivered by qualified professionals with substantive content expertise in positive-behaviour-support and trauma-informed practice, must be required for all teachers, EAs, and school administrators, and must be integrated with the broader professional-development framework.

The substantive content must include reporting provisions analogous to those for the segregated-setting transition pathway. The annual reporting on seclusion-room decommissioning progress, on physical-restraint incidents (including disaggregated reporting by school division, by student-disability-profile category, and by incident outcome), and on the substantive adequacy of the alternatives must be public, must be tabled in the Legislative Assembly, and must be subject to disability-community review.

The Positive Behaviour Support and Reasonable Accommodation Framework

The education-area standard must establish positive behaviour support and reasonable accommodation as the operational alternatives to seclusion, restraint, and segregation. The Inclusion Alberta documented position — that adequate educational-assistant staffing, training in positive-behaviour-support strategies, and trauma-informed practice are the operational alternatives — is the substantive model the legislation must operationalize.

The substantive content of the positive-behaviour-support and reasonable-accommodation framework must establish the structural-accommodation-provision requirement: every student with a disability who requires accommodation to participate fully in the inclusive-education environment is entitled to receive that accommodation, and the school division and individual school are required to provide the accommodation. The accommodation provision must operate without the structural barriers that have historically limited accommodation provision (lengthy assessment delays, inadequate substantive engagement with family-and-student needs, accommodation-rationing through the *undue hardship* defence, accommodation-failure attribution to the student's behaviour rather than to system failures of accommodation provision).

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The substantive content must establish the structured positive-behaviour-support framework as the operational alternative to seclusion-and-restraint practices. The framework operates on the substantive principle that behaviour challenges in students with disabilities are typically the consequence of unmet support needs, sensory-environmental factors, communication barriers, or other addressable conditions, rather than of the student's intentional misconduct. The operational implication is that the system response to behaviour challenges must focus on identifying and addressing the underlying conditions rather than on punishing or restraining the student. The substantive framework includes functional behaviour assessment, structured environmental modification, structured communication-accommodation, structured sensory-accommodation, structured peer-relationship support, and structured family-engagement throughout the process.

The substantive content must establish the trauma-informed-practice requirement across the K-12 system. The substantive principle is that many students with disabilities have substantial trauma histories (including the trauma of inadequate accommodation, the trauma of past seclusion-and-restraint experiences, the trauma of social-isolation in segregated programming, and the broader trauma histories that disproportionately affect populations with disabilities). The system response must be trauma-informed in its substantive design, meaning that practices and procedures must be evaluated against their substantive consequences for students with trauma histories rather than designed without consideration of those consequences.

The substantive content must establish the disability-affirming-practice requirement across the K-12 system. The substantive principle is that disability is part of human diversity, that disabled students are entitled to participate fully in the educational environment as disabled students rather than being expected to mask, suppress, or hide their disability characteristics, and that the educational environment must accommodate the full range of disability profiles rather than requiring disabled students to conform to non-disabled-typical norms. The substantive implication for educational practice includes the recognition of neurodivergent communication patterns, the recognition of disability-affirming sensory-regulation practices (including the use of stimming, fidgeting, movement, and other self-regulation behaviours), the rejection of compliance-training-based educational approaches (including but not limited to applied-behaviour-analysis approaches that have been criticized by the autistic community for substantive harm), and the integration of disability culture and disability-rights education into the broader curriculum.

The substantive content must establish the structured-accommodation-process requirement at the individual-student level. The process must include the family-and-student initiation of accommodation requests, the structured documentation of accommodation discussions and decisions, the substantive presumption in favour of providing requested accommodations, the structured-appeal-process for accommodation decisions, and the integration of accommodation-provision-tracking with the broader public-reporting framework.

The Article 4(3) Consultation Requirements

The education-area standard must establish Article 4(3) consultation requirements that operate at the policy-development, standards-development, and implementation levels. The substantive provision addresses the consultation gap documented in Section 1.3a (the Class Size and Complexity Cabinet

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Committee and the Aggression and Complexity in Schools Action Team operating without disability-community representation) and in Section 2.7a (Article 4(3) finding).

The substantive content of the consultation requirements must establish a structural Disability Community Education Consultation Council. The Council operates as a substantive disability-community representative body engaged with the development and implementation of all education policy affecting persons with disabilities. The Council membership includes parents of children with disabilities, persons with lived experience of disability who have been through the K-12 system, representatives of disability-rights organizations (including but not limited to Inclusion Alberta, the Alberta Council of Disability Services, the Alberta Federation of Parents of Students with Disabilities, the Alberta Association for Community Living, and analogous bodies), representatives of Indigenous-disability-community organizations (recognizing the substantial Indigenous-disability-population documentation maintained by the campaign and the substantive distinct concerns Indigenous-disability-community advocacy has raised), representatives of organizations supporting students with specific disability profiles (autism, learning disabilities, intellectual disabilities, mental-health disabilities, physical disabilities, sensory disabilities, multiple disabilities), and representatives of post-secondary disability-services organizations.

The Council operates with substantive authority. The Council is consulted prior to the development of any provincial-government education policy affecting persons with disabilities, including but not limited to the replacement of the 2003 *Standards for Special Education* documented in Section 1.3a. The consultation is substantive: the Council's input is considered before policy positions are developed, not after policy has been drafted and is being shopped for endorsement. The Council is consulted on standards development for the education-area substantive content. The Council is consulted on implementation issues as they arise. The Council reports publicly on the substantive engagement with its input, and the provincial-government must respond publicly to the Council's documented input.

The substantive content must establish the prohibition on the development of provincial-government education policy affecting persons with disabilities through structures that exclude disability-community representation. The Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team documented in Section 1.3a are operationally specific examples. The prohibition is general: any structure developing provincial-government education policy affecting persons with disabilities must include substantive disability-community representation, must operate consultation processes that meet the Article 4(3) substantive standard, and must report publicly on consultation outcomes.

The substantive content must establish the family-engagement and student-engagement requirement at the individual-school and individual-student level. The substantive engagement of families and students in the education planning, accommodation provision, and placement decisions affecting individual students with disabilities is the operational counterpart to the Council-level disability-community consultation. The two levels operate together to deliver the substantive Article 4(3) standard.

The substantive content must include Indigenous-disability-community consultation provisions that operate alongside the broader Council structure. The Indigenous-disability-community has substantive distinct concerns (related to the federal-provincial Jordan's Principle interface, related to the intersection of disability with treaty and Aboriginal rights, related to the cultural-context-specific accommodation

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requirements, related to the historical-trauma context of the disability-policy framework, and related to the ongoing colonial-disability dimensions documented in the campaign's separate Indigenous Disability Alberta evidentiary record). The consultation provisions must ensure that the Indigenous-disability-community concerns receive substantive consideration in the policy and standards development.

The Public-Record Reporting and Statutory-Review Cycle

The education-area standard must establish public-record reporting and statutory-review provisions that ensure the substantive content of the standard is monitored, evaluated, and improved over time. The provisions operate together with the analogous provisions for the legislation as a whole (developed in Section 3.8) and provide the substantive accountability mechanism through which the engineered-repudiation pattern is prevented from being reproduced under different operational labels.

The substantive content of the reporting provisions must require annual public reports addressing: the substantive implementation of the inclusive-education baseline, including data on student placement (inclusive, integrated, segregated) by school division, by grade level, and by disability-profile category; the substantive compliance with the per-student-funding-floor provisions, including the calculation of the Canadian average, the calculation of Alberta's per-student funding, and the trajectory of the Alberta funding against the floor; the substantive compliance with the EA staffing-ratio provisions, including the actual EA-to-student ratios in classrooms with students requiring support, by school division and by disability-profile category, and the recruitment and retention performance of the EA workforce; the substantive progress on the segregated-setting transition pathway, including the number and characteristics of students transitioned, the number and characteristics of students remaining in segregated programming, and the substantive adequacy of the transition support provided; the substantive compliance with the seclusion-room and restraint prohibition, including the closure progress for existing seclusion rooms, the documented physical-restraint incidents during the transition period, and the substantive consequences of the restraint incidents; the substantive operation of the positive-behaviour-support and reasonable-accommodation framework, including accommodation-request volumes, accommodation-provision rates, and accommodation-appeal outcomes; and the substantive operation of the consultation requirements, including the Council's documented input, the provincial-government response to the input, and the substantive engagement of families and students at the individual-student level.

The reporting provisions must include disaggregation requirements that enable substantive analysis of equity dimensions within the data. The disaggregation must include disaggregation by school division, by school, by grade level, by disability-profile category, by Indigenous identity (with appropriate provisions to protect individual-student identification), by gender, and by other dimensions necessary to identify substantive disparities and address them through ongoing improvement.

The reports must be public, must be tabled in the Legislative Assembly within a defined period each year, and must be accessible in alternative formats per the Area 2 substantive content of Section 3.3.

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The statutory-review provisions must establish a five-year cycle for independent review of the education-area standard. The independent reviewer is appointed on terms ensuring substantive independence from the provincial government (analogous to the *Manitoba Accessibility for Manitobans Act* statutory-review framework documented in Part Two Section 2.3, and to the Ontario AODA statutory-review framework documented in Part Two Section 2.2). The independent reviewer conducts substantive review of the operational implementation of the education-area standard, the substantive adequacy of the standards, the substantive implementation of the funding-floor and staffing-ratio provisions, the substantive progress on the segregated-setting transition, and the substantive compliance with the consultation requirements. The reviewer's report is public, is tabled in the Legislative Assembly, and triggers a structured provincial-government response within a defined period.

Coordination with the Existing Education-Sector Architecture

The education-area standard must coordinate with the existing Alberta education-sector legislative and regulatory architecture without displacing or duplicating its substantive provisions. The substantive content of the coordination provisions addresses the *Education Act* (the principal Alberta education statute), the 2003 *Standards for Special Education* (the existing Ministerial Order that includes parental-choice provisions for inclusive education), the FSCD program (which addresses family supports for children with disabilities outside the K-12 educational system itself), the post-secondary accessibility framework (which addresses post-secondary education separately from K-12), and the analogous adult-and-vocational-education frameworks.

The coordination with the *Education Act* must establish the supplementary relationship between the legislation and the existing education-sector statute. The legislation does not displace the *Education Act*; the *Education Act* continues to operate as the foundational education-sector legislation, while the *Alberta Accessibility and Inclusion Act* establishes the substantive accessibility-and-inclusion standards that operate within the education-sector. Where the two statutes interact, the substantive accessibility-and-inclusion standards in the new legislation establish the substantive minimum that *Education Act*-administered processes must meet.

The coordination with the 2003 *Standards for Special Education* must address the substantive relationship between the existing Ministerial Order and the new legislative framework. The 2003 Standards' substantive content (including the parental-choice provision for inclusive education and the placement-decision-appeal provisions) is preserved and strengthened within the new legislative framework. The replacement of the 2003 Standards documented in Section 1.3a as currently underway must occur within the new legislative framework, with the substantive parental-choice and appeal-rights elements preserved and strengthened, with the substantive Article 4(3) consultation requirements applied, and with the disability-community substantively engaged in the replacement process.

The coordination with the FSCD program must address the lifecycle interface documented in Part One Section 1.3 (transition from FSCD into the K-12 system and into PDD/AISH/ADAP at the adulthood transition). The substantive content of the coordination must ensure that students whose families receive FSCD support during their early childhood transition into the K-12 system with the substantive supports developed during the FSCD period continuing without disruption.

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The coordination with post-secondary accessibility and adult-and-vocational-education frameworks must address the lifecycle interface at the K-12-to-post-secondary transition and at the K-12-to-vocational-education transition. The substantive content must ensure that students whose K-12 experience has been substantively supported by the new legislation transition into post-secondary or vocational education with the substantive supports developed during the K-12 period continuing without disruption.

What Section 3.4 Establishes

The substantive content of the education-area standard of the *Alberta Accessibility and Inclusion Act* is now specified at the depth required for legislative-drafting input. The substantive content addresses the engineered three-part repudiation documented in Part One Section 1.3a at the operational level, operationalizes Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities* and General Comment No. 4 within Alberta provincial jurisdiction directly, and specifies the departures from comparator legislation that the documented Alberta record requires.

The eight substantive components of the education-area standard establish: the inclusive-education baseline as the structural framework for the Alberta K-12 system, with statutory presumption in favour of inclusive placement, parental-choice protection for inclusive education, and right-of-appeal of placement decisions departing from inclusive placement; the per-student-funding-floor provisions that prevent the funding-starvation pattern from being the structural mechanism through which inclusion is denied, calibrated to the Canadian provincial-and-territorial average over a five-year adjustment period with structural enforcement; the educational-assistant staffing-ratio provisions calibrated to three substantive support tiers, supplemented by living-wage provisions for the EA workforce and structural training provisions; the segregated-setting transition pathway with foundational prohibition on expansion of new segregated facilities and programs and structured ten-year transition of existing segregated programming to inclusive programming with appropriate adaptations and supports; the structural seclusion-room and restraint prohibition reversing Ministerial Order #042/2019 with two-year decommissioning timeline and narrowly-defined immediate-safety physical-restraint provisions; the positive-behaviour-support and reasonable-accommodation framework operating as the operational alternative to seclusion, restraint, and segregation, with disability-affirming-practice and trauma-informed-practice requirements integrated into educational practice across the K-12 system; the Article 4(3) consultation requirements operationalized through a structural Disability Community Education Consultation Council and through the prohibition on the development of education policy affecting persons with disabilities through structures excluding disability-community representation; and the public-record reporting and statutory-review cycle that ensures substantive accountability through annual reporting and five-year independent review.

The substantive content is the operational answer to the engineered repudiation. Where the engineered system uses funding starvation as the structural mechanism through which inclusion is denied, the funding-floor provisions establish the structural-resource floor that the engineered pattern cannot defeat. Where the engineered system uses segregated-classroom expansion as the absorption mechanism for the displaced students, the prohibition-on-expansion and the structured-transition pathway reverse the absorption mechanism. Where the engineered system uses *earn inclusion* rhetoric as political cover, the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

statutory presumption in favour of inclusive placement and the substantive disability-community consultation requirements establish that inclusion is the structural baseline, not a contingent benefit available subject to behaviour. Where the engineered system uses the consultation gap as the procedural enabler, the structural Disability Community Education Consultation Council establishes the substantive consultation infrastructure the engineered pattern lacked. Where the engineered system uses seclusion rooms as one operational harm within the segregated environments, the structural prohibition and the two-year decommissioning timeline eliminate that harm category from the system.

The substantive content is grounded in the documented Alberta record, in the international human rights framework, in the comparator-jurisdiction record, and in the disability-community advocacy position consistently maintained over the period under examination. The substantive specifications are detailed enough to guide legislative drafting and to provide the operational basis for the standards-development processes that will follow legislative enactment, while preserving the technical-drafting and standards-specification work that legislative counsel and standards-development bodies will conduct.

The next section turns to the implementing architecture and enforcement provisions through which the substantive content of all eight standards areas is operationalized.